
**IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**AMENDED STANDING
DECORUM ORDER, EFFECTIVE
AUGUST 28, 2026**

Case No. 251403576

Judge Tony F. Graf, Jr.

Pursuant to the inherent authority of the Court under Utah Code section 78A-2-201 and consistent with Utah Code of Judicial Administration (UCJA) rules 3-414 and 4-401.01 et. seq., the Court enters the following **STANDING DECORUM ORDER** to ensure the safety, security, and orderly conduct of judicial proceedings and to establish standards of conduct for those attending the proceedings in this matter.

The purposes of this Order are to:

- Protect the parties' right to fair and impartial proceedings;
- Protect against unfair prejudice to the parties;
- Ensure preservation of the court record;
- Ensure orderly and efficient management of court proceedings;
- Permit public access to court proceedings; and
- Allow for electronic media coverage of court proceedings.

To achieve these purposes, the Court hereby **ORDERS** as follows:

1. This Order (and its attachments, which are incorporated herein by reference) shall govern the conduct of all media representatives and members of the public attending the hearing.
2. As used herein, the terms "Spectator" and "Spectators" refer to all media representatives and members of the public attending the proceedings, but excludes court personnel, court reporters, counsel of record, and counsel of record's support staff.

PROHIBITED AND/OR RESTRICTED ITEMS

3. **Bags:** No bags of any kind (including backpacks, briefcases, purses, or similar items) are permitted inside the courtroom, unless expressly authorized by court security staff.
4. **Face Coverings:** No face coverings, masks, or other items that obscure the identity of an individual are permitted, except when medically necessary or expressly authorized by the Court.
5. **Dangerous Items:** No weapons, explosives, or other dangerous items are permitted in the courtroom.

COURTROOM SEATING

6. Courtroom 4B has limited seating. The number of Spectators shall not exceed the courtroom capacity.
7. The defendant, counsel of record, counsel's support staff, and counsel for the victim representative may sit in front of the bar (*i.e.*, at or directly behind counsel tables).
8. Except as otherwise provided below, all Spectators shall remain in the gallery, behind the bar separating the gallery from the well of the courtroom.
9. The first row of the gallery shall be reserved for Mr. Kirk's family members and guests, up to a total of twelve (12) persons.
10. The second row of the gallery shall be reserved for Mr. Robinson's family members and guests, up to a total of twelve (12) persons.
11. If the proceeding extends beyond one day, the seating assignments set forth in Paragraphs 9 and 10 shall alternate daily between Mr. Kirk's family members and guests and Mr. Robinson's family members and guests.
12. The remaining rows of the gallery are open to all Spectators, to the extent courtroom capacity allows.

CONDUCT OF SPECTATORS

13. All Spectators shall follow the instructions of court security staff.
14. All Spectators entering or remaining in the courthouse or courtroom shall comply with the lawful directions and instructions of the Utah County Sheriff's Office personnel and the Utah State Courts Security Director, or their designated representatives, acting in furtherance of this Order or for the safety and security of the court.

15. The Utah County Sheriff's Office and Utah State Courts security personnel are authorized to implement and enforce the provisions of this Decorum Order, including managing ingress and egress, seating, screening procedures, movement within the courthouse, and other reasonable security measures necessary to ensure the orderly administration of justice.

16. Any Spectator who refuses to comply with the lawful directions of court security personnel or sheriff's deputies may be denied entry to, or removed from, the courthouse or courtroom, subject to further order of the Court.

17. All Spectators entering the courthouse are subject to security screening. No person shall bypass or interfere with established security procedures or screening operations.

18. Entry into employee-only, judicial, or otherwise restricted areas of the courthouse is prohibited unless expressly authorized by the Court or court security personnel.

19. In the event of an emergency or security incident, all Spectators shall immediately comply with the instructions of the Utah County Sheriff's Office, Utah State Courts security personnel, emergency responders, or other designated officials.

20. All Spectators shall be quiet, civil, and orderly. Spectators shall not engage in any distracting, disruptive, provocative, disrespectful, uncivil, or threatening behavior of any kind.

21. Spectators shall not make any audible comments of any kind; shall not shake or nod their heads; and shall not otherwise make any gestures during the hearing.

22. Spectators shall not wear or display pins, buttons, signs, clothing, or photographs expressing support for or against any person related to this case or the status of this case as a capital offense.

23. Spectators shall not be permitted to pass the bar or enter the well of the courtroom without express authorization from court security staff or the judge.

24. Spectators shall enter and exit the courtroom without causing disruption or distraction. If a Spectator seeks to enter the courtroom during the hearing, that person will need to remain outside of the courtroom until the Court takes a recess or until the hearing concludes, whichever occurs earlier. If a Spectator exits the courtroom during the hearing, that person will need to remain outside the courtroom until the Court takes a recess or until the hearing is concluded, whichever occurs earlier.

25. At the end of each proceeding, all Spectators shall remain in the courtroom until court security staff give permission to leave. The court security staff may, in their discretion,

direct Spectators sitting in certain parts of the gallery to leave before Spectators in other parts of the gallery. Spectators shall follow the directions of court security staff and court personnel.

USE OF PORTABLE ELECTRONIC DEVICES

26. "Portable electronic device" means any device that can record or transmit data, images or sounds, or access the internet, including a pager, laptop/notebook/personal computer, handheld PC, PDA, audio or video recorder, wireless device, cellular telephone, or electronic calendar.

27. Spectators shall place all portable electronic devices on "silent" mode. Any portable electronic device that makes an audible sound during court proceedings may be secured by the court security staff and retained until the end of the hearing; at which time it shall be returned to the owner.

28. Consistent with UCJA rule 4-401.02, portable electronic devices may be restricted in certain hearings such as the preliminary hearing and at trial or as otherwise directed by the Court. Court security staff may require that devices be turned off, surrendered, or stored during these proceedings.

29. No audio or video recording, broadcasting, transmitting, or photography is permitted, unless specifically authorized by the Court under UCJA rules 4-401.01 or 4-401.02.

30. When operating a portable electronic device, Spectators must hold the device below the rail in front of the Spectator, so it is clear the device is not being used to record or photograph the proceedings.

31. Use of a portable electronic device in violation of this Order may result in the device being secured by the court security staff and the Spectator being removed from the courtroom, in addition to other penalties outlined below.

ADDITIONAL ORDERS RELATED TO NEWS REPORTERS AND EMC

32. Media vehicles shall be parked along the upper west deck of the parking structure.

33. Media representatives shall identify themselves and produce appropriate identification (photo ID).

34. As used herein, the terms "Electronic Media Coverage" ("EMC") and "News Reporter" have the same meaning as in UCJA rule 4-401.01.

35. Recording or transmitting images or sound of court proceedings without the express permission of the Court is prohibited.

36. EMC of court proceedings is permitted if a News Reporter submits a timely written request as required under UCJA rule 4-401.01 and secures a signed Order for Electronic Media Coverage of Court Proceedings.

37. EMC of court proceedings shall be permitted subject to the terms of this Order, any Order for Electronic Media Coverage of Court Proceedings issued by the court, and any subsequent order related to or restricting EMC.

38. News Reporters shall comply strictly with this Order, any Order for Electronic Media Coverage of Court Proceedings secured by the News Reporter, and all provisions of UCJA rule 4-401.01. Failure to do so may subject the News Reporter to contempt sanctions as allowed by law, removal from court proceedings, and termination of EMC.

39. Unless otherwise approved by the judge or the judge's designee, EMC is limited to one audio recorder and operator, one video camera and operator, and one still camera and operator.

40. The location of cameras, microphones, and other EMC equipment shall be subject to approval by court personnel, with the judge having the final say.

- a. Video cameras will be positioned in the rear southeast corner of the courtroom.
- b. Still photographer(s) must remain seated behind the bar, set their cameras to operate silently, and may not use flash.

41. After the Court has appointed the pool photographers, it is the responsibility of the media to decide how they will pool their coverage and how they will share audio, video, and photography files produced by the pool coverage.

42. Pool equipment operators shall use equipment that is capable of sharing audio, video, and photographic files to pool recipients in a generally accepted format.

43. The pooling arrangement shall be reached before the court proceedings commence and without imposing on the judge or court personnel.

44. Neither the judge nor court personnel shall be called upon to resolve disputes concerning pooling arrangements.

45. No media interviews will be permitted inside the courtroom.

46. The Court expects News Reporters to respect the wishes of all individuals involved in court proceedings if they wish not to be interviewed or to end an interview.

47. Audio and video recording, as well as live streaming, of any court proceeding shall not commence until the hearing has officially begun or resumed and must cease when the court is in recess or the proceeding has officially ended.

- a. The Court will signal the official beginning or resuming of a proceeding using a gavel or through an explicit statement that recording may begin or that Court is in session.
- b. The Court will signal that it is in recess or ended using a gavel or through an explicit statement that recording must end or Court is in recess.

48. Media representatives shall use their best efforts to avoid visually recording or photographing court employees-except for the judge-without prior approval. This includes court security staff, clerks, and judicial assistants.

49. Visual recordings and photographs of the defendant are prohibited except for when the defendant is seated at counsel table. Media representatives must not visually record or photograph the defendant while he is entering or exiting the courtroom or while he is standing.

50. If the defendant is in physical restraints, media representatives must not visually record or photograph the restraints.

51. During court proceedings, News Reporters shall not move around the courtroom and shall not move their equipment in a way that is disruptive or distracting.

52. No video recording or still photography is permitted in the courthouse lobby, elevators, or passageways.

53. Video recording and still photography is permitted outside of the courthouse (*e.g.*, exterior walkways and parking lot) but shall not include video recording or still photography of employees entering or exiting the employee building or parking entrances.

54. No audio recording or transmission is permitted of conferences involving counsel at the counsel tables or during bench conferences with the judge.

55. Video recording of counsel tables must maintain a wide shot that includes all individuals seated at that table.

56. There shall be no video recordings that:

- a. "Zoom in" to focus on one individual at the counsel table.
- b. "Zoom in" thereby making writings or computer screens on counsel tables or the bench decipherable.

57. No visual recording is permitted of a person's lips, so as to be decipherable by a lip reader, during conferences involving counsel at counsel tables or bench conferences with the judge.

58. Attorneys and witnesses may be filmed individually when standing at the lectern or seated in the witness box respectively.

59. News Reporters shall address all complaints and concerns to Tania Mashburn, Director of Communication, Administrative Office of the Courts.

OTHER LIMITATIONS ON ELECTRONIC MEDIA COVERAGE

60. Notwithstanding the foregoing, unless expressly authorized by the Court, there shall be no audio or visual recordings, transmissions or artistic reproductions (including those altered or created by AI) of:

- a. A juror or prospective juror whether within the courtroom, courthouse, or elsewhere until the person is dismissed.
- b. The face of a person known to be a minor.
- c. An exhibit or a document that is not part of the official public record.
- d. Proceedings conducted in chambers.

61. No one shall communicate with any juror or prospective juror except court personnel acting in the course of their duties or attorneys as may be permitted by the Court until the person is dismissed.

COPIES OF THIS ORDER TO BE POSTED AND READ

62. Copies of this Order shall be posted outside the courtroom. A copy may also be requested by email addressed to 4thgrafteam@utcourts.gov.

63. All Spectators shall read and comply with the terms of this Order.

64. As needed to ensure compliance, notice of this Order may also be given verbally by court security staff and/or court personnel.

ENFORCEMENT AND/OR PENALTIES FOR VIOLATIONS

65. Anyone who violates the terms of this Order may be removed from the court proceedings in which the violation occurred and/or may lose access to future proceedings.

66. Any violations by the News Reporters' video pool operator may result in immediate suspension of video transmission of the proceeding in which the violation occurs

and/or disqualification of that operator and/or his outlet from serving as the pool operator for future proceedings.

67. Anyone who violates the terms of this Order shall be subject to contempt proceedings or referral to law enforcement. Contempt proceedings may result in sanctions which may include:

- a. An order of temporary or permanent exclusion from the courtroom and security areas;
- b. An order of temporary or permanent exclusion of the media organization represented by the offender from the courtroom and security areas;
- c. Contempt of Court sanctions, punishable by confinement in the Utah County Jail for up to 30 days and a fine not to exceed \$1,000 for each offense; and
- d. Such other sanctions as deemed necessary by the judge. to ensure due process and the interests of justice.

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EXCEPTIONS

Court personnel, court reporters, court security staff, law enforcement officers, attorneys, attorneys' staff and individuals with prior written authorization from the Court are exempt from applicable restrictions as necessitated by their official duties.

DATED this 28th day of August, 2026.

BY THE COURT:



Judge Tony F. Graf, Jr.
District Court Judge



Used At Direction Of Judge

CERTIFICATE OF NOTIFICATION

I certify that a copy of the attached document was sent to the following people for case 251403576 by the method and on the date specified.

MANUAL EMAIL: KATHRYN NESTER KATHY@NESTERLEWIS.COM

MANUAL EMAIL: STACI VISSER STACI@BROWNBRADESHAW.COM

MANUAL EMAIL: JEFFREY GRAY DCOURT@UTAHCOUNTY.GOV

MANUAL EMAIL: CHAD GRUNANDER CHADGR@UTAHCOUNTY.GOV

MANUAL EMAIL: RYAN MCBRIDE RYANM@UTAHCOUNTY.GOV

MANUAL EMAIL: CHRISTOPHER BALLARD CBALLARD@UTAHCOUNTY.GOV

MANUAL EMAIL: DAVID STURGILL DAVIDSS@UTAHCOUNTY.GOV

MANUAL EMAIL: LAUREN HUNT LAURENH@UTAHCOUNTY.GOV

08/28/2026

/s/ TREENA HANSEN

Date: _____

Signature